CORAM: HER HONOUR HALIMAH EL-ALAWA ABDUL BAASIT (MRS), JUDGE, SITTING AT THE CIRCUIT COURT, DANSOMAN-ACCRA ON THE 29TH DAY OF MAY, 2025.

SUIT NO. CCD/CC7/03/25

THE REPUBLIC

VRS

STEPHEN ACQUAH

Accused Person present.

Chief Insp. Emelia Mensah for the Prosecution present.

No Legal Representation.

JUDGMENT

Background:

1. On the 10/10/2024, the Accused Person was arraigned before this instant Court on the offence of Defrauding by False Pretence: Contrary To Section 131(1) of the Criminal Offences Act, 1960 (Act 29). The brief facts as narrated by D/PW/Constable Victoria Aniagye are that the Complainant is a trader resident in Kasoa whiles Accused is a Decorator and resides at Mankesim. In September 2023, the Accused Person collected cash sum of Ghc32,000.00 from the complainant at Kaneshie under the pretext of securing her with Canadian visa but failed to do so and went into hiding. On 06/09/2024 information gathered was that, accused was arrested by Israel Police a suburb of Accra in a similar case. On 19/09/2024 accused was re-arrested after being identified by the complainant. During investigations,

Accused Person admitted the offence in his Caution Statement. After investigation he was charged with the offence and arraigned before this honorable court.

The Plea

2. On the 10/10/2024, the Accused Person, pleaded not guilty to all offences levelled against him after same was read and explained to him in the Twi Language. Having pleaded not guilty, the burden now lies on the Prosecution to adduce enough evidence to establish beyond reasonable doubt that the Accused Person indeed committed the offences he has been charged with. Article 19(2) (c) of the Constitution 1992 provides that *'a person charged with a criminal offence shall be presumed innocent until he is proved or has pleaded guilty'*. Thus, throughout a criminal trial, the burden of proving the guilt of the Accused Person remains on the Prosecution. (See **Asante vs. The Republic** (1972) 2 GLR 177).

3. As such, the Prosecution assumed the burden of proving the guilt of the Accused Person beyond reasonable doubt and at the close of the case of the Prosecution, the Court has to determine whether the Prosecution has established a prima facie case against the Accused Person to require him to open his defence. An Accused Person is generally not required by law to prove anything, he is only to raise reasonable doubt in the mind of the Court as to the commission of the offence to secure an acquittal. (See **COP vs Antwi** (1961) GLR 408 SC). In other words, the Prosecution, per their witnesses and evidence before the Court, must establish that the Accused Person indeed committed the offence. Section 11(2) of the Evidence Act, 1975 (NRCD 323) provides that *'…in criminal action, the burden of producing evidence, when it is on the Prosecution as to any fact which is essential to guilt, requires the Prosecution to produce sufficient evidence so that on all the evidence, a reasonable mind could find the existence of a fact beyond reasonable doubt'*.

4. **<u>Evidence of Prosecution</u>**

   To prove their case, Prosecution called Two (2) Witnesses to testify and tendered in the following as Exhibits;

   Exhibit "A" - Statement at the Police Station dated 6/09/2024.

   Exhibit "B" - Accused Person's Caution Statement dated 19/09/2024.

   Exhibit "C" - Charge Statement of Accused Person dated 19/09/2024.

<u>Testimony of Prosecution Witnesses</u>

5. The first Prosecution Witness (PW1) is the Complainant, Lizata Osman, a trader and resident of Kasoa. She testified by stating that the Accused Person was introduced to her by a friend based in Italy. In the month of September 2023, the Accused Person asked her to pay a sum of GH¢32, 000.00 with the intention of assisting her with a Canadian Visa. Upon receipt of the money, the Accused Person went into hiding and refused to pick up her calls. PW1 testified further that in August 2023, the Accused Person again asked her for Ghc1, 000.00, as her visa was ready for travelling and that a lady would come for the money on his behalf.

6. PW1 then lodged a complaint against the said lady at the Kasoa Police Station because she had been informed that the Accused Person had been arrested. PW1 testified again that the Kasoa Police Officers could not arrest the lady of which she convinced the said lady to lead her to the Accused Person. She testified further that she was taken to the Police Station at Mile 7 where she identified the Accused Person and subsequently lodged a complaint leading to the arrest of the Accused Person.

7. The second Prosecution Witness is the Investigator herein who testified that when the case was referred to her, she obtained PW1's statement and commenced investigations. Information gathered was that the Accused Person had been arrested and detained at the Achimota Mile 7 District Police Headquarters. On 19/09/2024, the Accused Person was taken to the Kaneshie Police Station after being identified by the PW1. On the same day, she obtained the necessary statements from the Accused Person where he admitted collecting a sum of Ghc32, 000.00 from the complainant. PW2 testified further that upon interrogation, the Accused Person asserted that he took the money and gave it to one Mr. Asare at Last Chance Travel and Tour Accra. The Accused Person however, failed to lead the Police to the said Mr. Asare of which he was charged and arraigned before Court.

DEFENCE OF THE ACCUSED PERSON

8. On the 10/04/25, the Accused Person opened his Defence wherein he stated that he got to know PW1 through a mutual who was based in Qatar and PW1 was then outside the country. In 2020, PW1 informed him that she was returning to Ghana and upon her return she later indicated her intention to travel outside the jurisdiction again. He then advised her to travel to either Spain or Canada as he was in the business of assisting people through a company called Last Chance. PW1 expressed her interest in traveling to Canada and Accused Person offered to assist by taking her to the Last Chance office. When PW1 was eventually ready, Accused Person linked her to an agent called Asare who spoke to PW1 about the processes and payments regarding the Canadian Visas.

9. PW1 eventually paid Ghc30,000.00 but failed to deposit her passport for completion of the process by Mr. Asare. Mr. Asare began to lose his patience and they both made several calls to PW1 but she failed to pick the calls. Subsequently, Accused Person fell sick and was hospitalized for about Four (4) months resulting in the delay in processing peoples' documents including PW1. Upon his discharge from the hospital, he reached out to all the persons he was assisting to travel and PW1 informed him that her Passport had been seized as she owed him Ghc5, 000.00 which ought to be paid before her Passport will be released. PW1 later informed him that she was no longer interested in traveling as she has gotten pregnant and requested for the refund of her money from Mr. Asare.

10. In the process, one of his customers caused his arrest and he informed the PW1 but was unable to reach Mr. Asare on phone as he was not answering his phone. All subsequent efforts at reaching Mr. Asare so as to request for a refund proved futile of which another customer caused his arrest again. Whilst at the Police Station, he called to inform PW1 about his arrest and pleaded with her to give him time to refund her money. PW1 however lodged a complaint at a Police Station resulting in his arrest and arraignment before instant Court.

Analysis

11. In criminal trials, the required standard of proof is provided for by Sections 11(2), 13(1) and 22 of the **Evidence Act, 1975** (NRCD 323) as requires that the Prosecution must prove its case beyond reasonable doubt. According to Justice S. A. Brobbey in his book **Essentials of the Ghana Law of Evidence**, 2014 at page 50 *'…Proof beyond reasonable doubt does not mean that there should be no doubt whatsoever in the case presented by the prosecution. It means that by the end of the trial, the prosecution*

must prove every element of the offence or the charge (but not all the facts) and show that the defence is not reasonable…'

12. In the instant case, the Accused Person having been charged with the offence of Defrauding by False Pretence, the particulars of the offence are as follows; ' ***Stephen Acquah: Aged: 25 Years****: Decorator, During the month of September, 2023 at Kaneshie in the Greater Accra Circuit and within the jurisdiction of this court, with an intent to defraud, did obtain the consent of one Lizata Osmani to part with cash the sum of GHC32,000.00 by means of certain false pretences that if the said amount is given to you, you could secure her Canadian visa and upon such false representation you succeeded in obtaining the said amount from Lizata Osmani which statement you well knew at the time of making it to be false.'*

13. Section 131(1) of Act 29 states that: '… *A person defraud by false pretences if, by means of any false pretence, or by personation that person obtains the consent of another person to part with or transfer the ownership of anything...''* Section 132 of Act 29 also provides that; *'…a person defrauds by false pretences if, by means of a false pretence, or by personation that person obtains the consent of another person to part with or transfer the ownership of a thing…'* Defrauding by false pretence is defined by section 133 (1) of Act 29 as follows: *'… A false pretence is a representation of the existence of a state of facts made by a person with the knowledge that the representation is false or without belief that it is true and made with intent to defraud…'*

14. In the case of **<u>The Republic vs Selormey</u>** [2001-2002] 2 GLR 424, the Court stated the following ingredients in an offence of defrauding by false pretences to include the fact that *'…person shall make a false representation or by a personation either by written, spoken or sign language or any other means whatsoever; the said representation*

was made in regard to the existence of a state of facts to obtain the consent of another person; the said representation was false or made without the belief that it was true; as a result of the false representation the accused person caused the other person to part with or transfer ownership of a thing…' See also **Sarpong vs The Republic** [1981] GLR 790, **Philip Assibit Akpeena vs. The Republic** (Unreported); Court of Appeal Suit Number H2/23/2018 (13/02/2020).

15. In light of the above, the essential elements of the offence of defrauding by false pretence are as follows:
    (a) A representation has been made as to the existence of some fact, which representation was either made in writing, uttered words or impersonation;
    (b) A representation was made with the knowledge that it is false and with the intent to defraud;
    (c) Based on the representation made, the consent of another person was obtained to part with something.

16. The first element is that **a representation has been made as to the existence of some fact, which representation was either made in writing, uttered words or impersonation.** The Prosecution's Exhibit 'A' is a Statement made by the PW1, the Complainant herein at the Police Station on the 6/09/2024 where she stated at page 1 line 7 as follows; *'…somewhere in November 2023, Stephen told me he can help me to travel to Canada. He charged me an amount of Ghc7, 000.00 for securing me Canadian visa…''.* The Accused Person cross-examined the PW1 and the questions and answers given suggests that indeed the Accused Person made a representation as to the existence of state of facts, which is the fact that he facilitates the travel

arrangement of people outside the country. Similarly, the Accused Person made the said representation by uttering words to PW1. The following transpired;

Q: You will agree with me that I help people to travel?

A: Yes.

Q: That is why you have made a friend in Italy whom you know I helped to travel to Italy?

A: Yes, I know.

17. The second element of the offence is that **a representation was made with the knowledge that it is false and with the intent to defraud.** It is trite that in many offences, the mens rea required is an 'intention' as there must be proof of an intention to cause a particular result. As such, Prosecution must establish that the Accused Person had the intent to deceive in such a manner as to expose the Complainant to lose or the risk of loss. (See **R v Firling**, 15 English & Empire Digest, page 1006). Again in **R v Newton & Bennet**, 9 Cr. App. R. 146, the Court held that *'… to deceive is to induce a man to believe that a thing is true which is false and which the person practicing the deceit knows or believes to be false. To defraud is to deprive by deceit, it is by deceit to induce a man to act to his injury…'* In **Welham v DPP** [1961] A.C. 103, Lord Denning distinguished between 'intent to deceive' and 'intent to defraud' by saying that *'… 'Fraud' in ordinary speech means the using of false representations to obtain an unjust advantage. Likewise in law 'fraud' is proved when it is shown that a false representation has been made knowingly or without belief in its truth, or recklessly, careless whether it be true or false...'*

18. The Accused Person in his defence, which are statements made on oath, testified that he offered to assist PW1 with a Canadian Visa. However, PW1 failed to submit

her Passport for the completion of the process and eventually requested for the refund of her money because she was pregnant and no longer interested in travelling outside the country. In the process, he got sick and was hospitalized resulting in him losing contact with PW1. The Accused Person was subjected to cross-examination and the following was captured by the records;

Q: So now you will agree with me that your intention was to defraud PW1?

A: No.

Q: I put it to you that your intention was to defraud her?

A: That is not so.

Q: What was the ¢30,000.00 for?

A: PW1 paid the ¢30,000.00 for her Visa processing fee.

Q: How were you going to obtain the Visa for PW1 with the ¢30,000.00?

A: If PW1 has submitted her Ghana Card and Passport, it would have facilitated the Visa.

Q: I am finally putting it to you that you had the intention to defraud PW1 and you did defraud her?

A: That is not so, PW1 has travelled before and she would not have trusted me with her process if I was not a genuine person.

19. The defence of the Accused Person as well as the cross-examination raises some doubt in the mind of the Court on the second element of **a representation being made by the Accused Person with the knowledge that it is false and with the**

intent to defraud. It is the Prosecution's case that the Accused Person defrauded PW1 but it must be emphasized that an accused person is not obliged to prove his/her innocence. All that an accused is required to do when invited to open his/her defence is to raise reasonable doubt regarding his/her guilt. The Supreme Court in the case of **MALLAM ALI YUSIF v THE REPUBLIC** [2003-2004] SCGLR 174 held that**;** *'…the burden of producing evidence and the burden of persuasion are the components of 'the burden of proof.' Thus, although an accused person is not required to prove his innocence, during the course of his trial, he may run a risk of non-production of evidence and/or non-persuasion to the required degree of belief, particularly when he is called upon to mount a defence...'*

20. The learned Archer J. in the case of **Blay vs The Republic** [1968] 1040-1050 held as follows; *'… in a charge of defrauding by false pretences, if the evidence showed that the statements relied on consisted partly of a fraudulent misrepresentation of an existing fact and partly of a promise to do something in future, there was sufficient false pretence on which a conviction could be based…'.* Thus, the Prosecution must establish that the Accused Person made a representation to the Complainant, a representation he knew to be false and made with an intention to defraud the Complainant. In the case of **Adobor vrs The Republic** 13 [2008] 19 MLRG 23 CA, the Court of Appeal held that: *'…to constitute an offence by false pretence, the accused should have made a representation which to his knowledge is false, the representation should be made to a person who believed it …'*

21. The evidence on record shows admission on the part of the Accused Person that he offered to assist the Accused Person travel of which she made some payments but PW1 also failed to meet the requirement of submitting her Passport. This defence was captured in Exhibits 'B' and 'C' which are the confessions statements

made at the point of the arrest of the Accused Person. The evidence on record raises certain presumptions and a presumption is a legal inference that must be made in light of certain facts and may result in creating evidential burdens or legal burdens and in this case, the defence of the Accused Person raises some doubt in the case of the Prosecution. In other words, a legal presumption is when a fact is assumed to be true based on another fact that is known or proven.

22. Section 22 of **The Evidence Act, 1975 (NRCD 323**) is on the Effect of Certain Presumptions in Criminal Actions and states as follows; *'… in a criminal action, a presumption operates against the accused as to a fact which is essential to guilt only if the existence of the basic facts that give rise to the presumption are found or otherwise established beyond a reasonable doubt, and, in the case of rebuttable presumption, the accused need only raise a reasonable doubt as to the existence of the presumed fact…'.* In the instant case, the presumption is that but for the sickness of the Accused Person, the failure of PW1 to submit her Passport as well as her getting pregnant and giving up on the travel, the Accused Person may have completed the process of acquiring the Canadian visa for PW1.

23. These presumptions have raised doubts in the case of the Prosecution and in the case of **G/L/CPL Ekow Russel vs. The Republic** [2016] DLSC 2800, Akamba JSC stated that the basic principles underlying our criminal justice system are as follows; *'…throughout the trial of an accused person, the Prosecution has the burden to prove each ingredient of the charge against the accused, beyond reasonable doubt. Failure to meet this high burden in relation to one of the ingredients of a charge must resonate in an acquittal on that particular charge. The Prosecution must produce the evidence to meet the requirements of S. 11 (2) of the Evidence Act, NRCD 323….'* The evidence of the Prosecution was not enough to discharge all the essential elements of the offence

of Defrauding by False Pretences as Prosecution was unable to show that a **representation was made by the Accused Person with the knowledge that it is false and with the intent to defraud**.

Conclusion

24. It is evident from the totality of the evidence on record that there was some sort of agreement between both the Accused Person and PW1 but this agreement was frustrated by the actions and inactions of both parties. What the Court observes is a sort of contractual differences and/or dispute arising out of the transaction and/or agreement between PW1 and Accused Person but clearly not one of fraud or false representation made with the intention to defraud. The defence of Accused Person raises reasonable doubt in the case of the Prosecution as to his guilt on the charge of Defrauding by False Pretence. The Court is of the opinion that this case is purely a civil matter and there are other avenues available for PW1 to seek redress. The Court therefore finds Accused Person herein not guilty of the offence of Defrauding by False Pretence. Accordingly he is acquitted and discharged forthwith on same.

H/H HALIMAH EL-ALAWA ABDUL-BAASIT

CIRCUIT COURT JUDGE